

		FAC does not allege that Plaintiffs consented to Defendant’s release or agreed to a novation. Accordingly, any uncertainty concerning the transfer’s terms or legal effect does not establish on the face of the FAC that Defendant was discharged from the guaranty. Finally, Defendant’s references to a potential statute-of-limitations defense and the City of San Juan Capistrano’s possible responsibility do not establish a defect on the face of the FAC. The FAC does not establish that the claim is time-barred, and Defendant’s assertion concerning the City relies on facts outside the pleadings. Accordingly, the motion for judgment on the pleadings is denied. Plaintiffs to give notice.
58	Luera vs. Ford Motor Company 24-01450066	Motion for Judgment on the Pleadings Defendant Theodore Robins Ford, Inc. dba Theodore Robins Ford’s (“Theodore Robins Ford”) motion for judgment on the pleadings is GRANTED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve within 15 days of service of the notice of ruling. A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc, § 438 subd. (c)(1)(B).) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (<i>Bezirdjian v. O'Reilly</i> (2010) 183 Cal.App.4th 316, 321-322, citing <i>Schabarum v. California Legislature</i> (1998) 60 Cal.App.4th 1205, 1216.) Theodore Robins Ford contends the cause of action for negligent repair is barred by the statute of limitations. “Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’ ” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 806.) The discovery rule provides an exception by postponing the accrual of a cause of action until the plaintiff either discovers or has reason to discover the cause of action, which occurs when the plaintiff has reason to suspect a factual basis for a cause of action. (<i>Id.</i> at p. 807; <i>Norgart v. Upjohn Co.</i> (1999) 21 Cal.4th 383, 397–398.) A plaintiff has reason to suspect a factual basis for a cause of action when he or she “has ‘ ‘ ‘ ‘ ‘notice or information of circumstances to put a reasonable person on inquiry.’ ’ ’ ’ ’ ” (<i>Norgart, supra</i>, 21 Cal.4th at p. 398; <i>Kline v. Turner</i> (2001) 87 Cal.App.4th 1369, 1374 (<i>Kline</i>).) “For purposes of accrual of the limitations period, inquiry notice is triggered by suspicion.” (<i>E-Fab, Inc. v. Accountants, Inc. Services</i> (2007) 153 Cal.App.4th 1308, 1319 (<i>E-Fab</i>).) The plaintiff need not know the specific facts necessary to establish the elements of the cause of action, but must, within the applicable limitations period, “seek to learn the facts necessary to bring the cause of action in the first place.” (<i>Norgart, supra</i>, 21 Cal.4th at p. 398; <i>Kline, supra</i>, 87 Cal.App.4th at p. 1374.)

		The FAC alleges Theodore Robins Ford negligently repaired the Subject Vehicle during the repairs performed on or around February 24, 2020, and October 5, 2020. (FAC ¶ 31.) During the February 24, 2020 repair visit, Theodore Robins Ford documented multiple transmission-related concerns, replaced the 10-speed transmission assembly and transmission cooler and reprogrammed the PCM, yet failed to properly diagnose, repair, test, and verify the underlying transmission and fluid sealing defects, resulting in the continued manifestation of transmission-related problems following the repair. (<i>Id.</i>) During the October 5, 2020, repair visit, Theodore Robins Ford again identified transmission fluid leaks, replaced the transmission pan, gasket, and rear seal after confirming fluid leakage through the transmission pan and from the rear seal area. (FAC ¶ 32.) Despite these repairs, the Subject Vehicle continued to experience transmission-related failures and fluid leaks. (<i>Id.</i>) Here, the FAC’s allegations indicate that the negligent cause of action accrued by October 2020. Plaintiff alleges Theodore Robins Ford again identified transmission fluid leaks at the October 5, 2020 visit. (FAC ¶ 33.) This is sufficient to “put a reasonable person on inquiry.” (<i>Norgart, supra</i>, 21 Cal.4th at p. 398.) Plaintiff has not alleged any facts that would invoke the discovery rule or other exception that would postpone the accrual of the negligent repair cause of action. Theodore Robins Ford also contends Plaintiff fails to state a cause of action for negligent repairs because the FAC does not adequately allege causation or damages. To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. The elements of negligence are duty, breach, causation, and damages. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072.) The FAC alleges Theodore Robins Ford’s repeated failure to properly diagnose, repair, inspect, test, and verify the condition of the transmission system and associated fluid sealing components after multiple repair attempts directly and proximately caused the continued transmission malfunction, fluid leakage, loss of drivability, and resulting damages suffered by Plaintiff. (FAC ¶ 34.) The FAC does not state what damages Plaintiff suffered from Theodore Robins Ford’s alleged conduct. The allegations are insufficient to support a cause of action for negligent repair, and also prevent a determination as to the applicability of the economic loss rule and the independent tort doctrine. Without more, the court is unable to analyze whether Plaintiff is seeking tort recovery for purely economic losses. The motion for judgment on the pleadings is granted with leave to amend within 15 days of service of notice. Defendant Theodore Robins Ford, Inc. to give notice.
59	Landau vs. 138 6th Street, LLC 22-01245356	Motion for Judgment on the Pleadings Cross-Defendant Albert J. Brown, as Trustee of the Al Brown Trust dated December 5, 1989 (“Brown”), moves for judgment on the pleadings as to Cross-Complainant 138 6th Street, LLC’s (“138”) Second Cause of Action for express contractual indemnity and Third Cause of Action for equitable indemnity. The motion is DENIED for the reasons set forth below.